

Tentative Rulings
September 23, 2026
Department S-17
Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

If you do not wish to submit on a tentative ruling, you must appear for the hearing in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If all parties submit on the tentative ruling, it will become the ruling of the court. The tentative ruling may note particular issues on which the court requests the parties to provide further argument at the hearing. If directed, attendance at the hearing is mandatory. The prevailing party will serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings in this Department. Parties who wish to have an official record of the proceedings in addition to a minute order must retain a private Certified Shorthand Reporter for the hearing and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the department if you would like a copy of this form. Parties who do not retain a Certified Shorthand Reporter to be designated as an official Court Reporter Pro Tempore are deemed to have waived an official Court Reporter for the proceeding.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

12. *Herron Construction, Inc. v. Ford Motor Company, et al*, Case No. CIVSB2510004
Plaintiffs' Motion for Attorneys' Fees and Costs
9/23/26, 9:00 a.m., S-17

Tentative Rulings

The Court would **DENY** the requested multiplier but **GRANT** the motion and award fees at \$19,969, with costs of \$2,653.32.

Case Summary

This is a lemon law case. In essence, Plaintiff alleges that it bought a 2024 vehicle on December 3, 2024. It came with express and implied warranties from Defendant. Plaintiff allege that Defendant breached the warranties because the vehicle suffered from serious defects and nonconformities, including certain ignition and electrical problems that Defendant was unable to repair despite being afforded numerous opportunities to do so. (Compl., ¶¶11-14.)

On April 9, 2025, Plaintiff filed this instant action asserting (1) violation of Civil Code Section 1793.2(d); (2) violation of Civil Code Section 1793.2(b); (3) violation of Civil Code Section 1793.2(a)(3); (4) breach of express written warranty Civil Code Section 1791.2(a); and (5) breach of the implied warranty of merchantability Civil Code Section 1791.1.

Relevant here, the parties filed a notice of settlement and Plaintiff is the prevailing party.

Statement of Law

In general, attorneys' fees, costs, and expenses are recoverable under the Act, Civil Code section 1794, subdivision (d), which provides:

If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.

To prevail under the Act, the buyer must have recovered damages or other legal or equitable relief. (Civ. Code, § 1794(a).)

Analysis

Multiplier: The Court would *not* provide any multiplier. The purpose of a multiplier is "to fix a fee at the fair market value for the particular action. In effect, the court determines, retrospectively, whether the litigation involved a contingent risk or required extraordinary legal skill justifying afforestation of the unadorned lodestar in order to approximate the fair market rate for such services." (*Thayer v. Wells Fargo Bank* (2001) 92 Cal.App.4th 819, 833 [emphasis added].) Here, there is no evidence that this case was anything other than a garden-variety lemon law action that settled before trial. No multiplier appears warranted.

Attorney rates: The rates are high for the practice area and the geographic region.

In fixing the reasonable fees, the court must determine the reasonableness of the attorneys' hourly rates. (*Cordero-Sacks v. Housing Authority of City of Los Angeles* (2011) 200 Cal.App.4th 1267, 1286.) Generally, a reasonable hourly rate is the prevailing rate in the community where the case is litigated for similar work. "The court may rely on its own knowledge and familiarity with the legal market in setting a reasonable hourly rate." (*Heritage Pacific Financial, LLC v. Monroy* (2013) 215 Cal.App.4th 972, 1009.)

Here, the Court would lower Attorney Wood's rate to no more than \$500 per hour, as a reasonable adjustment given the legal market and the area of practice. The Court would likewise reduce the remaining attorneys' rates to \$350 per hour. The law clerk/ paralegal rates appear appropriate at \$215 per hour.

As to the Billing Records: As a starting point, Plaintiff submits a lodestar analysis indicating 58.6 hours worked on this case. The Court would award three hours at \$350 per hour (or \$1,050) for the motion and reply, as this motion appears routine and large portions seem unnecessary. As to the underlying billing, Defendant contends that that billing is in parts excessive, duplicative, administrative, vague, unnecessary, and inefficient.

Duplicate & Unnecessary Fees – Defendant argues that internal duplication of efforts in the form of repeated reviews, file audits, communications, and conferences are inherently unreasonable. Thus, duplicative entries should be discounted. Further, Defendant argues that Plaintiff should be barred from recovering fees necessitated by Plaintiff's own discovery misconduct. On reply, Plaintiff argues that Defendant has not demonstrated that the entries are duplicative, excessive, or unnecessary. The Court agrees. Thus, no deduction is warranted as to this argument.

Vague Entries – Similarly, Defendant takes issue with billing entries that are vague. Again, on reply Plaintiff argues that Defendant has failed to identify any specific entries. Regardless, Plaintiff argues that its entries include attorney-client communications, communications with counsel and attorney, work product, and strategy meetings. Per Plaintiff, there is nothing vague about these tasks. Plaintiff's position again is correct. Defendant's Exhibit 1 does not specifically show that any billing entries are vague.

Administrative & Clerical Tasks – Finally, Defendant takes issue with what it argues are administrative clerical tasks performed by attorneys throughout. Defendant argues that the total amount billed for work that could have properly been billed at lower, more appropriate rate should be rejected or severely reduced. A specific reduction of hours for non-billable tasks is not stated, and Defendant does point to specific billing entries in Exhibit 1. Thus, again, the Court would refrain from reduction.

However, the Court would reduce two (2) hours as purely clerical work. Case law provides that "[i]t is well established that a plaintiff may not recover fees for time spent on purely clerical work." (*Zargarian v. BMW of N. Am., LLC* (C.D. Cal. 2020) 442 F.Supp.3d 1216, 1229.) As correctly noted by Defendant, many of the entries involve purely clerical time. These include, but are not limited to examples such as the .10 hours billed on August 20, 2020, for Alatorre that indicates "Entry for SMS reminder to client re upcoming depo prep." In total, the Court located 18 such entries, totaling two (2) hours. The Court would reduce the clerk billing by that amount.

Costs: “Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding.” (Code Civ. Proc. § 1032(b).) Absent statutory authority, the Court has no discretion to deny costs to the prevailing party. (*Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 129.) Here, costs appear supported.

Thus, the total hours approved would be 56.6 hours or \$18,919, plus \$1,050 for the work on this motion. The fees would be approved at \$19,969. Costs would be approved at the requested \$2,653.32.

17. *Tetra Tech, Inc., et al, v. Laka*, Case No. CIVSB2516211
Defendant’s Motion to Compel “Discovery Responses”
9/23/26, 9:00 a.m., Dept. S-17

The Court would **CONTINUE** this matter to allow the payment of proper motion filing fees.

Movant is admonished to separate out motions by discovery device. Here, movant’s single motion for “discovery responses” is actually *two* motions: (1) a motion to compel responses to Requests for Production, Set One (RFP1) *and* (2) a motion to compel responses to Special Interrogatories, Set One (SROG1).

Such a combination creates problems allocating filing fees and calendaring the motions. (Gov. Code, § 70617(a)(4) & (f) [moving party must pay the filing fee for each discovery motion “[r]egardless of whether each motion or matter is heard at a single hearing or at separate hearings.”].) “If more than one motion is combined with another, a separate filing fee shall apply to each motion.” (Local Rule 521.) Here, only one filing fee has been paid.

Accordingly, movant will pay the additional filing fee, and the matters will be continued to a time after all required fees have been paid.
